

1. Plaintiff's Complaint, on its face and considering the Deemed Admitted Order, states facts sufficient to constitute causes of action against the Defendant for Negligence and Subrogation.
2. The Court further finds that the pleadings, in light of the Deemed Admitted Order, do not state facts sufficient to constitute a defense to the Complaint
3. Defendant caused damages in the amount of \$7,386.40, which amount is due and owing to Plaintiff.

Disposition

The Court finds and orders as follows:

1. The Motion for Judgment on the Pleadings is GRANTED.
2. Plaintiff shall file electronically the Order for signature.

Should any party contest the above tentative ruling the hearing will be conducted on February 17th at 9:00 a.m.

**2. 9:00 AM CASE NUMBER: L24-03014
CASE NAME: CAPITAL ONE, N.A. VS. KAREN JEFFERSON**

***HEARING ON MOTION IN RE:**

FILED BY:

TENTATIVE RULING:

Not on Calendar. This will be dropped.

3. 9:00 AM CASE NUMBER: L24-05325

CASE NAME: JPMORGAN CHASE BANK, N.A. VS. MARK DAVID

***HEARING ON MOTION IN RE: MTN TO SET ASIDE NOTICE OF SETTLEMENT AND ENTER JUDGMENT**

FILED BY PLN ON 11/12/25

FILED BY:

TENTATIVE RULING:

Background

Plaintiff filed a motion to Set Aside Notice of Settlement and enter judgment pursuant to stipulation. The Motion and its additional documents were filed in a timely manner.

This Motion is unopposed, and mail service was completed at the address where the Defendant was personally served with the Complaint.

Analysis

The parties entered into a CCP 664.6 agreement on 8/1/24 where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for judgment to be entered in the amount of \$7,386.40, plus costs, less any credits for payments received.

The Defendant made payments of \$4,000.00.

The Stipulated Agreement was filed 11/12/25.

The Motion is unopposed. There is proof of mail service to an address at Gold Ct, in El Sobrante. Though Defendant never filed an Answer in this matter, the Complaint does list the same address as the one used for service of this Motion; and, the Defendant did enter into an agreement in the instant matter. Thus, the Court finds that the Defendant was on notice of the cause of action in the instant matter, and that mail service of this Motion is sufficient.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$1,927.11.

Plaintiff to file order on Motion, as well as submit Judgment.

Should any party contest the above tentative ruling the hearing will be conducted on February 17th at 9:00 a.m.

4. 9:00 AM CASE NUMBER: L24-07498

CASE NAME: CAPITAL ONE, N.A. VS. AUSTIN WILLIAMS

***HEARING ON MOTION IN RE: TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT**

FILED BY: CAPITAL ONE, N.A.

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant that was the same as that listed in the Complaint. Though Defendant never filed an Answer, he did enter into a Stipulation